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Case Number: 24SMCV03417 Hearing Date: August 26, 2026 Dept: P

Tentative

Ruling

Capucine

Wade v. H & R Block, Inc., et al., Case No. 24SMCV03417

Defendants'

Motion for Summary Judgment

Hearing

Date: August 26, 2026

Background

Plaintiff

Capucine Wade ("Wade") sues Defendants H & R Block and Sepulveda Go Kings

("Defendants") for premises liability and general negligence arising from a

trip and fall incident on July 18, 2023 at H & R Block's office in Culver

City, CA. (Complaint, p. 6.)

Defendants

filed this Motion for Summary Judgment on May 11, 2026. Wade filed opposition on August 6, 2026. Defendants replied on August 14, 2026.

Arguments

Defendants

move for summary judgment on Wade's premises liability claim and the duty element of Wade's general negligence claim. Defendants argue that Wade's premises liability claim is duplicative of her general negligence claim because it is not a separate cause of action from general negligence, but rather a specific application of negligence. (Motion for Summary Judgment, p. 4.)

Defendants also argue that they owed Wade no duty to repair the non-existent or trivial defect in the premises that caused Wade's fall. (Id. at p. 5.) Defendants next argue that the record contains no evidence of a defective condition at all because photographs Wade took after the incident show no defect in the carpet. (Id. at p. 7.) Finally, Defendants argue that even if there was a defect, the defect is trivial. (Id. at p. 8.)

In

opposition, Wade argues that the evidence shows that an H & R Block employee pressed the carpet down after Wade fell but before the photographs were taken. Wade argues that affidavits should be construed liberally in favor

of the opposing party and strictly against the moving party. Wade argues that Defendants owed her a duty as owners of the premises where the incident occurred. (Opposition, p. 10.) Wade argues that Defendants offer no admissible evidence that negates the duty they owed as owners of the premises. (Id. at p. 12.) Wade argues that the uplifted carpet was a dangerous condition. (Id. at p. 13.) Wade argues that Defendants failed to meet their burden of proving that they did not have actual or constructive notice of the dangerous condition, and that notice should be imputed. (Id. at p. 17.) Finally, Wade argues that her claims for premises liability and negligence are not duplicative. (Id. at p. 19.)

In reply,

Defendants argue that the opposition misses Defendant's central point: that a defendant does not owe a duty to correct trivial defects. (Reply, p. 1.) Defendants argue that Wade bears the burden of proving that the defect was not trivial and that she has not carried that burden. (Id. at p. 3.) Defendants argue that Plaintiffs' expert declaration is without foundation because he never inspected the carpet at issue and based his opinion on photos that do not show the alleged defect and google earth imagery. (Id. at p. 4.) Defendants argue that Wade's evidence that someone patted the carpet down is also not from a witness with knowledge of the condition and is therefore improper. (Id. at p. 5.) Defendants also argue that if the alleged defect is substantial, as Wade contends, then it

could not be as easily and quickly corrected as they argue it was; and if it

could be as easily corrected as Wade argues, then the defect would be trivial

as a matter of law. (Id. at p. 6.) Finally, Defendants argue that the premises

liability claim is duplicative of the negligence claim. (Id. at p. 8.)

Undisputed

Facts

On

July 18, 2023, at 10:00 am, Wade visited the H &R Block office located at

5500 Sepulveda Blvd., Culver City, CA to have her incarcerated son's tax

returns prepared. (Reply Separate Statement, No. 2-4.) Defendant Sepulveda Go

Kings owns the property at issue, which H & R Block leases. (Id. at No. 1.)

The entry to the H & R Block office is carpeted with modular carpet tiles.

(Id. at p. 14, No. 1.) On the date of the incident, the entry way was well lit

with no visibility issues, and the carpet was not concealed with debris or

other material. (Id. at no. 14-15.) Wade did not look at the carpet as she

stepped into the office. (Id. at no. 6.) Wade fell forward as she stepped into

the office. (Id. at no. 5.) After Wade fell, she took photographs of the carpet.

(Id. at no. 10.) Wade did not show the photographs to any H & R Block employees

and proceeded to have H & R Block prepare her son's tax returns. (Id. at

nos. 9, 11.) It is undisputed that the photographs do not show lifted carpet.

(Id. at no. 12.)

Evidentiary

Objections

Wade makes

eight objections to the Harris Declaration. Objection 1 is sustained (hearsay).

Objections 2-8 are overruled.

Defendants

make fifteen objections to the Rosescu Declaration. Objection 1 is sustained

(lacks foundation), objections 2-8, and 13 are overruled. Objections 9, 10, and

12, 14 are sustained (lacks foundation). Objection 15 is sustained (improper

legal conclusion).

Legal

Standard- Motion for Summary Judgment

Summary

judgment or adjudication is proper "if all the papers submitted show that there

is no triable issue as to any material fact and that the moving party is

entitled to judgment as a matter of law."

(Code Civ. Proc. §437c(c).) The

moving party bears the initial burden of production to make a prima facie

showing that there are no triable issues of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25

Cal.4th 826, 850.)

On a

motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D'Amico v. Board of Medical

Examiners (1974) 11 Cal.3d 1, 21.) Once the moving party has discharged its burden as to a particular cause of action, however, the opposing party may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action.¿ (Id. at §437c(p)(2).)¿

Discussion

Trivial

Defects

A property

owner does not owe invitees on its property a duty to prevent harm caused by a trivial defect. "Property owners are required to maintain land in their possession and control in a reasonably safe condition and to use due care to eliminate dangerous conditions on their property.¿ But a property owner is not liable for damages caused by a minor, trivial, or insignificant defect on its property.¿ The so-called 'trivial

defect doctrine' recognizes that persons who maintain walkways,

whether public or private, are not required to maintain them

in an absolutely perfect condition.¿ The duty of care imposed on a

property owner, even one with actual notice, does not require the repair of

minor defects."¿ (Fajardo v. Dailey (2022) 85 Cal.App.5th 221, 226

[cleaned up].)

"In

limited circumstances a court may determine a walkway defect is

trivial as a matter of law.¿ Where reasonable minds can reach only one

conclusion—that there was no substantial risk of injury—the issue is a question

of law, properly resolved by way of summary judgment.¿ But where sufficient

evidence has been presented so that reasonable minds may differ as to whether

the defect is dangerous, summary judgment is inappropriate."¿ (Id. at

226.)

California

Courts have developed two substantially similar tests

to determine whether a sidewalk defect is trivial, i.e.,

not dangerous, as a matter of law.¿ In Stathoulis v. City of

Montebello (2008) 164 Cal.App.4th 559, 567-68, the Court of Appeal set

out a two part test. "First, the court reviews

evidence regarding the type and size of the defect.¿ If that preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors such as the weather, lighting and visibility conditions at the time of the accident, the existence of debris or obstructions, and plaintiff's knowledge of the area.¿ If these additional factors do not indicate the defect was sufficiently dangerous to a reasonably careful person, the court should deem the defect trivial as a matter of law" (See also Nunez v. City of Redondo Beach (2022) 81 Cal.App.5th 749, 758 [adopting two-step framework]; Huckey v. City of Temecula (2019) 37 Cal.App.5th 1092, 1105 [same].)

More recently, in Stack v. City of Lemoore (2023) 91 Cal.App.5th 102, 110, the Court of Appeal read Government Code section 830.2 to require a more "holistic" approach, stating, "[a]lthough we agree with the premise that the size of the defect is the primary determinant of triviality, as discussed below, we modify the prevailing two-step framework into a holistic, multi-factor analysis."¿ The Court will follow Stack's holistic approach, although the result would be the same under either test.¿¿

"We begin

with the most important factor: the defect's size." (Stack, 91 Cal.App.5th at p. 110 [cleaned up].) "Sidewalk elevations ranging from three-quarters of an inch to one and one-half inches have generally been held trivial as a matter of law." (Huckey, supra, 37 Cal.App.5th at p. 1107; see Stathoulis, supra, 164 Cal.App.4th at p. 568 ["Several decisions have found height differentials of up to one and one-half inches trivial as a matter of law."]) A more "accurate encapsulation" of the law, according to Stack, is that "when the size of the depression begins to stretch beyond one inch the courts have been reluctant to find that the defect is not dangerous as a matter of law, i.e., that it is minor or trivial." (Stack, supra, 91 Cal.App.5th at p. 112.) "That said, there is no firmly fixed arbitrary measurement in inches below which a defect is trivial as a matter of law and above which it becomes a question of fact whether or not the defect is dangerous. This is because a court should not rely solely upon the size of the defect ... although the defect's size 'may be one of the most relevant factors' to the court's decision." (Id. at pp. 112–113 [cleaned up].)

Here, the size of the defect is really the only consideration. Undisputed facts establish aggravating factors were not present because that there was nothing obstructing

or concealing the defect, the entryway to H & R Block's office was

well-lit, and that Wade did not see the defect when she entered the office. (See

Unidsputed Facts, *supra*; cf. *Stack*, *supra*, 91 Cal.App.5th at

p. 115.)

Defendants

make a *prima facie* case that there was no defect at all. Wade's photos, taken

shortly after the incident, show no disruption or lift in the carpet near the

entry way. (See Appendix of Evidence, Exhibit 3.) Wade's testimony shows that

she took the three photos immediately or shortly after the incident. (Appendix

of Evidence, Exhibit 2, p. 52:1-7.) Testimony from the property owner shows

that the carpet in the entryway was professionally maintained and was not in a

state of disrepair. (Harris Decl., ¶¶ 8-9.)

The burden

shifts to Wade to show that the defect was not trivial.

Wade's

evidence consists primarily of her own testimony asserting that "they must have

patted the rug face down after [the fall]." (Plaintiff's Exhibit List, Exhibit

1, 46:11-12.) When asked how the carpet was bunched up when Wade fell, she

could not provide any detail, simply stating that her feet got caught and she

fell. (*Id.* at 60:12-17.) Wade testified

that when she was on the ground after she fell, she saw an employee patting down the rug. (Id. at 109:8-9.) Wade also provided an expert declaration stating that a raised tile would be dangerous. (Rosescu Decl., ¶ 8.)

The Court

agrees with Defendant's analysis of Wade's evidence: if the defect were sufficiently large to not be trivial, it could not have been remedied in the short time between Wade's fall and when she took the photos. If it was indeed fixed in that short time, it must have been so minor as to not be trivial.

Wade's evidence provides no consistent description of the size or even the type of the defect, alternatively claiming that it was a lifted carpet tile, a tear in the carpet, and that the carpet was bunched up. Defects including a two-inch wide, quarter inch deep chipped tile, a one eighth inch interior differential at the exit of an elevator, and a misaligned metal plate covering a utility vault have all been found to be trivial because of their insignificant size and because imposing such a duty on a building owner would be oppressive to landowners. (See *Robson v. Union Pacific Co.* (2945) 70 Cal.App.2d 759, 760-763 [chipped tile]; *Graves v. Roman* () 113 Cal.App.2d at 585-86; *Miller v. Pac. Gas & Elec. Co.* (2023) 97 Cal.App.5th 1161, 163-65 [utility vault].)

Here, any

defect that could be fixed in a matter of minutes by a receptionist would

arguably be less severe than the misaligned utility cover or the chipped tile.

Those defects would remain defects until fixed by someone with specialized

equipment or expertise. A bunched up or lifted carpet that could be fixed by an

employee in a minute or two would impose even more stringent restrictions on

landowners because it would allow premises liability for temporary trivial

defects.

Defendants'

Motion for Summary Judgment as to duty is GRANTED.

Premises

Liability

Here,

Wade's claim for premises liability is based on the same facts as her general

negligence claim and fails for the same reason. Additionally, premises

liability is a species of negligence and is duplicative because no facts

distinguish the claims. (See generally *Rowland v. Christian* (1968) 69

Cal 2d 108; see also *Morales v. Fansler* (1989, 5th Dist) 209 Cal App 3d

1581, 258 (applying the Rowland factors).)

Conclusion

Defendants'

Motion for Summary Judgment is GRANTED.